BY ORDER OF THE SECRETARY OF THE AIR FORCE

DEPARTMENT OF THE AIR FORCE POLICY DIRECTIVE 10-27

15 DECEMBER 2022

Operations

CIVIL AIR PATROL

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(Major General Charles S. Corcoran)
Senior Coordinator USSF
(SF/COO, Bruce Hollywood, SES)

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This Department of the Air Force Policy Directive implements Title 10, United States Code Chapter 959, *Civil Air Patrol,* in conjunction with Title 36 United States Code Chapter 403, *Civil Air Patrol*. It provides Department of the Air Force (DAF) policy on the utilization of, and support to, the Civil Air Patrol (CAP), a federally supported, congressionally chartered non-profit corporation that acts as the auxiliary of the United States Air Force when its services are used by any department or agency in any branch of the Federal Government and when performing designated Air Force-assigned missions and programs. This publication applies to all civilian employees and uniformed members of the Regular Air Force, the Air Force Reserve, the Air National Guard, the United States Space Force, and the CAP when conducting missions as the official Air Force Auxiliary, as well as personnel with a contractual obligation to abide by the terms of DAF issuances. This DAFPD may not be supplemented. Refer recommended changes and questions about this publication to the office of primary responsibility using the DAF Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 from the field through the appropriate functional chain of command. Ensure all records generated as a result of processes prescribed in this publication adhere to Air Force Instruction 33-322, *Records Management and Information Governance Program*, and are disposed of in accordance with the Air Force Records Disposition Schedule which is located in the Air Force Records Information Management System.

SUMMARY OF CHANGES

This document has been revised and needs to be reviewed in its entirety. Major changes include updating the applicability to include the United States Space Force, correcting the Title 10 references, and reorganizing the material for clarity.

1. Civil Air Patrol Resources and Purpose. The DAF furnishes equipment, supplies, appropriated funds, personnel, and other resources necessary to enable CAP to accomplish its authorized and assigned missions and programs. CAP uses federal resources to accomplish Air Force-assigned missions, and to accomplish certain corporate activities, including:

1.1. Assisting the DAF in fulfilling its non-combat programs and missions.

1.2. Providing assistance requested by federal, state or local governmental agencies to perform disaster relief missions and activities, other emergency and non-emergency public purpose missions and activities.

1.3. Encouraging and aiding United States citizens in contributing to the development of aviation and sustainment of air supremacy; and to encourage and develop by example the voluntary contribution of private citizens to the public welfare.

1.4. Providing aviation education and training.

1.5. Encouraging and fostering civil aviation in local communities.

1.6. Providing an organization of private citizens with adequate facilities to assist in meeting local and national emergencies.

2. Policy. It is DAF policy that:

2.1. **Considerations for Employment of Civil Air Patrol.** Participation by CAP in Air Force-assigned missions is strictly voluntary. By law, CAP is the auxiliary of the Air Force when its services are used by any department or agency in any branch of the Federal Government. Additionally, when performing approved missions as the Air Force Auxiliary, CAP members serve as Airmen and are integrated into the United States Air Force Total Force alongside Regular Air Force, Air National Guard, and Air Force Reserve members.

2.2. **Air Force-Assigned Missions.** The DAF may use the services of the CAP to fulfill non-combat programs and missions, which are conducted by the CAP in its Air Force Auxiliary status. Air Force-assigned missions are missions that have been assigned by the Secretary of the Air Force, or delegate (see **paragraph 3.2**). CAP activities not approved for Air Force Auxiliary status are conducted in its corporate status.

2.3. **Cooperative Agreement between the Department of the Air Force and Civil Air Patrol.** The DAF must use a Cooperative Agreement to define the overall working relationship between the DAF and CAP and to facilitate the transfer of federal resources to CAP. The Cooperative Agreement must comply with applicable provisions of Title 2, Code of Federal Regulations Part 1104, *Implementation of Governmentwide Guidance for Grants and Cooperative Agreements*; 2 CFR Part 1120, *Award Format for DoD Grants and Cooperative Agreements*; and 2 CFR Part 200, *Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards*. At a minimum, the Cooperative Agreement will address the programmatic requirements and the responsibilities of each organization involved in accomplishing CAP objectives and support.

3. Roles and Responsibilities.

3.1. The Assistant Secretary of the Air Force for Manpower and Reserve Affairs (SAF/MR) is responsible for providing strategic guidance, direction, and oversight of CAP, as well as assistance and appointments to the CAP Board of Governors. This authority can be further re-delegated.

3.1.1. The Board of Governors is the governing body of CAP, in accordance with 10 USC § 9497.

3.1.2. The Board of Governors is responsible for the effective, efficient, and proper management and fiduciary oversight of the CAP.

3.2. The Deputy Chief of Staff for Operations (AF/A3) is responsible for policy on Air Force Auxiliary integration, requirements, and DAF support to CAP. The AF/A3 is delegated the 10 USC § 9497 authority to approve Air Force-assigned mission, to include missions outside the continental United States in Alaska, Hawaii, and United States territories and possessions. This authority can be further re-delegated.

3.3. Air Combat Command is the principal Major Command responsible for resource advocacy and oversight of DAF support to CAP.

3.4. Office of The Judge Advocate General (AF/JA):

3.4.1. Acts as the DAF office with primary responsibility for advising, investigating, and adjudicating administrative tort claims related to aviation mishaps that arise from CAP's performance of Air Force-assigned missions.

3.4.2. Assists the United States Department of Justice with litigation arising out of the same issues described in **paragraph 3.5**.

3.4.3. Advises AF/A3 on the legal authority to employ CAP on Air Force-assigned missions.

3.4.4. Coordinates with SAF/GC on new issues and major changes such as those associated with aircraft status, foreign clearance, and civil aviation issues.

3.5. The Air Force Chief of Safety (AF/SE) provides safety program support, guidance, analysis, and training to assist CAP-USAF in management of CAP's preparation and conduct of Air Force-assigned missions.

FRANK KENDALL
Secretary of the Air Force

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

10 USC Chapter 959, *Civil Air Patrol*

36 USC Chapter 403, *Civil Air Patrol*

2 CFR Part 200, *Uniform Administrative Requirements, Cost Principles, And Audit Requirements for Federal Awards*

2 CFR Part 1104, *Implementation of Governmentwide Guidance For Grants And Cooperative Agreements*

2 CFR Part 1120, *Award Format For DoD Grants and Cooperative Agreements*

AFI 33-322, *Records Management and Information Governance Program*, 28 July 2021

Prescribed Forms

None

Adopted Forms

DAF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

CAP—Civil Air Patrol

DAF—Department of the Air Force

AF/A3—Deputy Chief of Staff for Operations

AF/A3OA—Air Force Operations Group, Civil Support Division

AF/JA—Office of The Judge Advocate General

AF/SE—The Air Force Chief of Safety

SAF/MR—Assistant Secretary of the Air Force for Manpower and Reserve Affairs

SF/COO—Space Force Chief Operations Officer